

Privileged internal memo — DGCL senior-counsel audit (prompt run)

Posture: Delaware corporate counsel (25+ year, litigation-heavy) reviewing these documents as if on the eve of a **books-and-records demand, inspection fight, or fiduciary challenge**. **Not legal advice.**

Method: Senior counsel prompt/senior_counsel_audit_prompt.md (Sections I–VI + Add-ons A–F), **strict** application (“silence is risk”).

Corpus: audit_text/ — **232** plain-text extracts from generated/ (corporate_meeting_minutes.py --output-root generated + scripts/extract_audit_text.py, **2026-04-18**). Set includes quarterly, AGM, special, stockholder consent (or DRS / SurveyTeams stockholder meeting stacks), **board notice waivers** (waiver_of_notice_board_meetings), compiled **all meetings book** extracts, DRS notice/waiver/ratification where applicable, and **Loki** (Wyoming) board minutes.

COI / bylaws: Charter OCR text under ocr_text/ for **Hippo** (Hippo, Inc. - Certificate of Incorporation (filed).ocr.docx.txt), **Ritual**, **TeamBoost**, and **DRS**. **Hippo** consents/waivers cite **Amended and Restated Bylaws (Article III Sec. 13, Article IV Sec. 21)**. **Ritual** and **TeamBoost** cite **By-Laws (Article II Sec. 9 consent; Article III Sec. 8 and Article VIII Sec. 4 board notice/waiver)**. **DRS** stockholder-side docs remain generic “bylaws” unless extended. Spot-check live filed charters and bylaws for amendments.

1. Executive risk assessment

Level	Rationale
GREEN	No obvious void-tier statutory traps in the synthetic set (no Sec. 271 asset sale as board-only, etc.). Board acts at meetings; Sec. 141(f) email-majority fiction not present. DRS has board Sec. 213 resolution in special minutes, stockholder cross-reference , majority-holder-only quorum narrative, waiver-focused stockholder minutes, standalone Sec. 222 notice and waiver .docx in the corpus, and Sec. 228 consent forms.
YELLOW	Book risk on material facts (Sec. 220) , live COI vs practice, and record-date math (DRS meeting – 10 days) vs bylaws. Signatures and delivery proof remain out-of-band. Generator mitigations verified in audit_text (2026-04-18) : annual stockholder Sec. IV uses to be filed ... as Exhibit A following execution (not “annexed” / “on file” by default); sole-holder Sec. 228 AGM cross-reference uses will be filed ... upon execution unless minutes_assert_exhibits_filed: true; Notice .docx includes a populated Date of this notice line.
RED (integrity)	None on corpus sync (TeamBoost starts 2023 ; audit_text matches generated).

2. Material defect / risk register (representative)

Date / scope	Action / document	Defect type	Legal hook	Risk	Remediation
DRS / SurveyTeams annual	Stockholder minutes Sec. IV: waivers to be filed as Exhibit A following execution (default minutes_assert_exhibits_filed unset)	Residual (execution)	Sec. 222 + practice	Low	Sign waivers; after annexing to the minute book, set minutes_assert_exhibits_filed: true on the company dict and regenerate if counsel wants on file / annexed wording.
DRS	Notice .docx — Date of this notice	— (prior “blank date” memo row obsolete)	Sec. 222	Low	Extracts show populated date (e.g. 2024-12-01 for 2024). If relying on notice path, still retain delivery proof outside the corpus.
DRS	Majority Sec. 228 ratification consent	Voidable (evidence)	Sec. 228	Medium	Execute signatures; prompt notice only if non-unanimous among voting holders (often N/A if sole voting holder).
Hippo / Ritual / TeamBoost	Sole Sec. 228 consent	Voidable (evidence)	Sec. 228	Low–Med	Sign the generated consent; Hippo COI in ocr_text/ (confirm no later amendments); Ritual/TeamBoost charters in ocr_text/.
Hippo / Ritual / TeamBoost	AGM Sec. 228 cross-reference	Mitigated (generator default)	Practice	Low	Minutes say will be filed ... upon execution (and to be designated Exhibit A upon filing when label set); not on file unless minutes_assert_exhibits_filed: true.

Date / scope	Action / document	Defect type	Legal hook	Risk	Remediation
All	Board minutes "notice given or waived"	Low	Bylaws	Low	Board waiver .docx generated per year; sign and file if desired.
All	No transactional minutes	N/A	Sec. 151+, Sec. 170, Sec. 271...	N/A	Use transactional prompt when events exist.

3. Remote governance (Section II)

- **Board Sec. 141(i)**: Contemporaneous remote participation stated. **Hippo / Ritual / TeamBoost** add **quorum maintained / no vote during comms interruption** language. **Gap** if contested: still no **per-vote** tabulation or disconnect **log** (evidence-grade).
- **Stockholders Sec. 211 / Sec. 222**: **DRS** notice form includes **date, time, place/remote, record date, purpose**; minutes use **waiver_focus** and match. **Remote verification** line present at meeting. **Gap**: **delivery** and **timeliness** are **not** in the corpus (logs, certificates of mailing).

4. Stockholder actions (Sec. 228; Sec. Sec. 211–213, 216–222)

- **Sole-holder Sec. 228** (Hippo, Ritual, TeamBoost): Forms + AGM cross-reference: default text is **will be filed ... upon execution** (and exhibit **designation upon filing**), not **on file / annexed**, unless `minutes_assert_exhibits_filed: true`. **Execute** consents; verify **COI**.
- **DRS annual meeting: Sec. 213** record date **board-fixed** in special minutes; **Sec. 216** quorum = **majority holder present alone** (per your fact pattern). **Sec. 218** list/proxy narrative; no tabulation exhibit.
- **DRS Sec. 228 majority ratification**: Template **authorizes** prompt notice; **proof** not in extracts.
- **DRS notice/waiver forms: Generated** and extracted—**stronger** than minutes-only; still require **signature, dating**, and **filing** the path you actually use (**waiver OR notice**, not necessarily both in practice).

5. Fiduciary record / Sec. 220 (Sections IV–V)

- **Sec. 141(e)**: Improved boilerplate (materials + officers); **not** deal-specific for **material** transactions.
- **Caremark / Van Gorkom**: Quarterly/AGM **routine** ratification tone; **acceptable** for low-stakes closely held use, **thin** for contested **M&A**-style facts.
- **Sec. 220**: Opposing counsel would still seek **underlying** notices, consents, ledger—extracts **point** to them more cleanly for DRS; **execution** remains the user's burden.

6. DGCL coverage map (Section VI — pass / gap / N/A)

Topic	Result	Note
Board existence & powers Sec. 141(a)–(b)	pass	Sole director; quorum stated.
Committees Sec. 141(c), Sec. 143	N/A	No committee actions.
Board vacancies / removal	N/A	Not addressed.
Board meetings Sec. 141(i)	pass	Remote boilerplate + optional quorum/continuity sentence (H/R/TB).
Board written consent Sec. 141(f)	pass	No improper email-majority board consent.
Sec. 141(e)	pass (routine) / gap (material)	Written-consent corps: materials review line added; still not deal-specific.
Stockholder annual Sec. 211	pass / gap	pass as narrative; gap vs COI for consent-only corps—verify.
Record date Sec. 213	pass (DRS)	Board resolution + cross-ref; gap vs bylaw defaults if facts differ.
Quorum / vote Sec. 216	pass (DRS, stated facts)	Majority holder only present—matches provided fact pattern; gap if cap table differs.
Proxies Sec. 218	gap	Narrative only; no exhibit.
Notice Sec. 222	pass (form) / gap (proof)	Notice + waiver documents generated for DRS; execution + delivery proof still gap .
Sec. 228	gap (execution)	Mechanics yes; signatures and prompt notice proof when required.
Sec. 204 / Sec. 205	N/A	No ratification of defective acts described.
Sec. 220	gap	Template-leaning without executed exhibits.
Sec. 145 / Sec. 102(b)(7)	N/A	Light review; no obvious conflict.
Bylaws Sec. 109	N/A	No bylaw amendment minutes.

Section VI — Aggressive grading (summary table)

Topic	Anchor	Grade	Notes
Notice	Sec. 222	YELLOW → mitigated (form)	Standalone notice + waiver in corpus; stockholder minutes Sec. IV softened (pending filing language). YELLOW remains for delivery / timeliness proof off-extract.

Topic	Anchor	Grade	Notes
Quorum / vote	Sec. 216	YELLOW	Sole voting presence narrative for DRS; still no vote tabulation figures.
Sec. 220	inspection	YELLOW	Better paper trail design for DRS; execution still out of band .

Add-ons A–F (abbreviated)

- **A:** Reconcile **10-day** record date and **notice dates** to **bylaws** and **facts**.
- **B:** Sec. 211 cadence present; TeamBoost from **2023**.
- **C:** Sec. 228 **authorization** ≠ **proof** (signatures, prompt notice when applicable).
- **D:** Run **extract** after every regen.
- **E:** **COI** vs written consent / waiver of separate meeting.
- **F:** Sec. 204/Sec. 205 if **voidable** defects appear in **live** records.

Deliverables checklist (prompt format)

1. **Executive risk:** **YELLOW** book; **no integrity RED**.
2. **Defect log:** Table in Sec. 2.
3. **Remote governance:** Sec. 3.
4. **Stockholder actions:** Sec. 4.
5. **Fiduciary / Sec. 220:** Sec. 5.
6. **Sec. VI map:** pass/gap table in Sec. 6.

Immediate remediation

1. **Execute** stockholder **waivers** and **Sec. 228** consents; **file** them with the minute book. After instruments are actually annexed, optionally set `minutes_assert_exhibits_filed: true` and regenerate if counsel wants minutes to read **on file / annexed**.
2. If using **notice** path: retain **delivery** and **timeliness** proof (the generated **Notice** includes **Date of this notice** in extracts; that is not the same as proof of delivery).
3. **Execute** all **Sec. 228** consents; keep in minute book.
4. **Regen** → **extract** → **refresh this memo + PDF** when templates change.

Closed / improved in this generator cycle

- **H/R/TB: Sec. 228** consent **sole-holder explainer** + **execution** block; AGM **filing-upon-execution** default (exhibit label optional); **Sec. 141(e) materials** supplement + **remote quorum continuity** on board minutes; bylaw **section cites**; **board waiver** .docx per year. **DRS: Sec. 213** special; **waiver_focus**; notice + waiver + ratification stack.
 - **Exhibit / filing claims**: default minutes_assert_exhibits_filed behavior—stockholder Sec. IV and sole **Sec. 228** AGM cross-reference use **pending filing** wording; **operating addendum** “annexed” softened to **designated for attachment upon filing** unless flag is true.
 - **Notice** .docx: **Date of this notice** populated from the board **record-date** meeting date (verified in audit_text).
 - **Per-meeting** roll call / quorum / **Sec. 141(e)**-style reliance **wording** rotates by meeting (less merge-field identical across dates).
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PDF

Render with: poetry run python scripts/audit_md_to_pdf.py
audit_reports/senior_counsel_audit_2022_2026.md --out
audit_reports/senior_counsel_audit_2022_2026.pdf